

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Greg Finch	Team: Squad #14	CCRB Case #: 201709970	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/30/2017 5:10 PM	Location of Incident: Saint Nicholas Avenue between West 141st Street and West 145th Street	18 Mo. SOL 5/30/2019	Precinct: 30		
Date/Time CV Reported Fri, 12/01/2017 12:18 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 12/01/2017 12:18 AM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. SGT Carlton Mckenney	00648	915141	TB ATU		
Officer(s)	Allegation		Investigator Recommendation		
A . SGT Carlton Mckenney	Abuse: Sergeant Carlton Mckenney refused to provide his name and/or shield number to § 87(2)(b)		A . Substantiated		

Case Summary

On December 1, 2017, § 87(2)(b) filed this complaint online via the CCRB's website.

On November 30, 2017, at approximately 5:10 p.m., § 87(2)(b) approached an unmarked patrol van parked in the bike lane on Saint Nicholas Avenue between West 141st Street and West 145th Street in Manhattan and asked Sergeant Carlton McKenney of Transit District Anti-Terrorism Unit to provide his name and shield number, which Sgt. McKenney refused to do (**Allegation A: Abuse of Authority, substantiated**). No arrest or summons resulted from this incident.

§ 87(2)(b) captured his interaction with Sgt. McKenney on an audio recording taken by him on his cell phone (Board Review 01). The transcription of the audio recording can be found below.

Findings and Recommendations

Allegation A – Sergeant Carlton McKenney refused to provide his name and/or shield number to § 87(2)(b)

§ 87(2)(b) said he was bicycling when he observed an unmarked white van parked in the bike lane missing the last digit of its license plate (Board Review 02; Board Review 03). § 87(2)(b) approached the vehicle and noticed a New York City Police Department placard on the vehicle. He began audio recording on his cell phone. The audio recording captures the following interaction:

§ 87(2)(b) Hey, good evening. Hey.

Sgt. McKenney: Huh?

§ 87(2)(b) Hey, did you know your plate is missing the last digit? It's torn off at the last digit. Did you know?

Sgt. McKenney: No, I didn't know. I just gotta look at it.

§ 87(2)(b) Oh, okay. Could I get your name and badge number?

Sgt. McKenney: Excuse me?

§ 87(2)(b) Can I please have your name and badge number?

Sgt. McKenney: No, I don't do that to somebody [intelligible] like that.

§ 87(2)(b) You're gonna decline to provide it?

Sgt. McKenney: I don't know who you are.

§ 87(2)(b) said that after Sgt. McKenney said he did not know who § 87(2)(b) was, he rolled up his window and drove away.

Sgt. McKenney did not recall this incident, but identified himself as the voice in the audio recording (Board Review 04). Sgt. McKenney confirmed that the vehicle's rear license plate was partially missing, but said it was fixed after this incident. Sgt. McKenney explained that when he is asked for his name and shield number by a random civilian and he "[does] not know who the person is," he uses his discretion in deciding whether or not to provide the requested information.

NYPD Patrol Guide, Procedure 203-09 states that officers must "courteously state [their] rank, name, shield number and command, or otherwise provide them, to anyone who requests [them] to do so and allow the person ample time to note this information" (Board Review 05).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **substantiated**.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of April 23, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 09).

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one CCRB complaint and has been named as a victim in one allegation (Board Review 07).
 - § 87(2)(b)
- Sgt. McKenney has been a member-of-the-service for 22 years and he has been a subject in one CCRB complaint and one allegation, which was substantiated. § 87(2)(g)

Squad No.: 14

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date